



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2265: courts; fees; assessments

CARTER N FLOOR AMENDMENT

1. Specifies that the courts may not adopt any new fees or charges against a criminal defendant.

CARTER N FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2265
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-584, Arizona Revised Statutes, is amended to
3 read:

4 11-584. Public defender; duties; reimbursement prohibited

5 A. The public defender, on order of the court, shall defend, advise
6 and counsel any person who is entitled to counsel as a matter of law and
7 who is not financially able to employ counsel in the following proceedings
8 and circumstances:

9 1. Offenses triable in the superior court or justice courts at all
10 stages of the proceedings, including the preliminary examination.

11 2. Extradition hearings.

12 3. Mental disorder hearings only if appointed by the court under
13 title 36, chapter 5.

14 4. Involuntary commitment hearings held pursuant to title 36,
15 chapter 18, only if appointed by the court.

16 5. Involuntary commitment hearings held pursuant to title 36,
17 chapter 37, if appointed by the court as provided in section 36-3704,
18 subsection C and the board of supervisors has advised the presiding judge
19 of the county that the public defender is authorized to accept these
20 appointments.

21 6. Juvenile delinquency and incorrigibility proceedings only if
22 appointed by the court under section 8-221.

23 7. Appeals to a higher court or courts.

24 8. All juvenile proceedings other than delinquency and
25 incorrigibility proceedings under paragraph 6 of this subsection,
26 including serving as a guardian ad litem, if appointed by the court
27 pursuant to section 8-221 and the board of supervisors has advised the
28 presiding judge of the county that the public defender is authorized to
29 accept these appointments.

9. All mental health hearings regarding release recommendations that are held in the superior court pursuant to title 13, chapter 38, article 14 and the board of supervisors has advised the presiding judge of the superior court in the county that the public defender is authorized to accept these appointments.

10. As attorneys in any other proceeding or circumstance in which a party is entitled to counsel as a matter of law if the court appoints the public defender and the board of supervisors has advised the presiding judge of the county that the public defender is authorized to accept these appointments as specified.

B. The public defender shall perform the following duties:

1. Keep a record of all services rendered by the public defender in that capacity and file with the board of supervisors an annual report of those services.

2. By December 1 of each year, file with the presiding judge of the superior court, the chief probation officer and the board of supervisors an annual report on the average cost of defending a felony case.

C. ~~Although~~ The services of the public defender or court appointed counsel shall be without expense to the defendant, the juvenile, a parent or any other party. ~~;~~ The court may NOT make ~~the following~~ ANY assessments **RELATED TO THE APPOINTMENT OR SERVICES OF A PUBLIC DEFENDER, INCLUDING:**

1. ~~Order~~ An indigent administrative assessment ~~of not more than \$25.~~

2. ~~Require that the defendant, including a defendant who is placed on probation, or any other party who is appointed counsel under subsection A of this section repay to the county a reasonable amount to reimburse ANY REIMBURSEMENT TO~~ the county for the cost of the person's legal services. Reimbursement for legal services in a guardianship or conservatorship proceeding shall be ordered pursuant to section 14-5414. The court may not order a juvenile or the juvenile's parent or guardian to pay administrative assessments or **TO** reimburse the cost of legal services.

~~D. In determining the amount and method of payment the court shall take into account the financial resources of the defendant and the nature of the burden that the payment will impose.~~

~~E. Assessments collected pursuant to subsection C of this section shall be paid into the county general fund in the account designed for use solely by the public defender and court appointed counsel to defray the costs of public defenders and court appointed counsel. The assessments shall supplement, not supplant, funding provided by counties for public defense, legal defense and contract indigent defense counsel in each county.~~

Sec. 2. Section 12-115, Arizona Revised Statutes, is amended to read:

12-115. Additional filing, appearance and answer or response fees; deposit

1 A. In addition to any other assessment authorized by law, the
2 supreme court shall establish an additional fee on each filing, appearance
3 and answer or response fee charged by a clerk of the superior court.

4 B. The clerk shall collect the additional fee and monthly remit the
5 additional fees to the county treasurer. The county treasurer shall
6 transmit the fees to the state treasurer on or before the fifteenth day of
7 each month for deposit, pursuant to sections 35-146 and 35-147, in the
8 fair jury improvement fund established by section 21-222. The state
9 treasurer shall invest and divest monies in the fund as provided by
10 section 35-313, and monies earned from investment shall be credited to the
11 fund.

12 C. The additional fee may be deferred or waived pursuant to
13 sections 12-302 and 12-304.

14 D. In establishing the additional fees under subsection A of this
15 section, the supreme court may designate by rule that the additional fees
16 not be imposed on filings in types of cases that involve minimal use of
17 court resources, that are not afforded the opportunity for a trial by jury
18 or that do not involve the use of digital evidence. **THE SUPREME COURT MAY**
19 **NOT IMPOSE THE ADDITIONAL FEES ON FILINGS FOR A JURY TRIAL IN A CRIMINAL**
20 **CASE.**

21 Sec. 3. Section 12-253, Arizona Revised Statutes, is amended to
22 read:

23 **12-253. Powers and duties**

24 The adult probation officer shall:

25 1. Make and file a complete record of persons **WHO ARE** placed under
26 suspended sentence by the court, and of all reports **THAT ARE** made to the
27 **ADULT PROBATION** officer in writing or in person, in accordance with the
28 conditions imposed by the court.

29 2. Exercise general supervision and observation over persons **WHO**
30 **ARE** under suspended sentence and supervision pursuant to section 13-3994,
31 subject to control and direction by the court.

32 3. Serve warrants, make arrests and bring persons before the court
33 who are under suspended sentences. The **ADULT PROBATION** officer has the
34 authority of a peace officer in the performance of the **ADULT PROBATION**
35 officer's duties.

36 4. Investigate cases **THAT ARE** referred to the **ADULT PROBATION**
37 officer for investigation by the court in which the **ADULT PROBATION**
38 officer is serving and report to the court. In an investigation for a
39 presentence report, the adult probation officer shall promptly inquire
40 into the circumstances of the offense, **AND** the convicted person's history
41 of delinquency or criminality, social history, employment history, family
42 situation, economic status, ~~including the ability to contribute to~~
43 ~~reimbursement for the costs of the person's legal defense pursuant to~~
44 ~~section 11-584,~~ education and personal habits. ~~The presentence report~~
45 ~~shall contain a recommendation by the officer regarding contribution by~~
46 ~~the convicted person toward the costs of legal defense pursuant to section~~
47 ~~11-584.~~ The **ADULT PROBATION** officer shall also promptly inquire into the
48 physical, emotional and financial impact of the offense on the victim and

1 the emotional and financial impact of the offense on the VICTIM'S
2 immediate family ~~of the victim~~ and shall notify the victim or the VICTIM'S
3 immediate family ~~of the victim~~ of the right to appear personally or by
4 counsel at any aggravation or mitigation proceeding.

5 5. Secure and keep a complete identification record of every person
6 WHO IS released under a suspended sentence and a written statement of the
7 conditions of the suspension.

8 6. Obtain and assemble information ~~concerning~~ THAT CONCERNS the
9 conduct of persons WHO ARE placed under suspended sentence and report the
10 information to the court.

11 7. Bring defaulting probationers into court when in the ADULT
12 probation officer's judgment the conduct of the probationer justifies the
13 court to revoke suspension of the sentence.

14 8. Monitor the payment of restitution.

15 Sec. 4. Title 12, chapter 3, article 1, Arizona Revised Statutes,
16 is amended by adding section 12-306, to read:

17 12-306. New fees

18 THE COURT SHALL NOT ADOPT ANY NEW FEE [THAT IS NOT PREVIOUSLY
19 SPECIFICALLY AUTHORIZED BY STATUTE] [, FINE, SURCHARGE OR ASSESSMENT THAT
20 APPLIES AGAINST A CRIMINAL DEFENDANT].

21 Sec. 5. Section 12-332, Arizona Revised Statutes, is amended to
22 read:

23 12-332. Taxable costs and jury fee in superior court;
24 prohibited in criminal actions

25 A. Costs in the superior court include:

26 1. Fees of officers and witnesses.

27 2. Cost of taking depositions.

28 3. Compensation of referees.

29 4. Cost of certified copies of papers or records.

30 5. Sums paid a surety company for executing any bond or other
31 obligation therein, not exceeding, ~~however,~~ one ~~per cent~~ PERCENT on the
32 amount of the liability on the bond or other obligation during each year
33 it was in force.

34 6. Other disbursements that are made or incurred pursuant to an
35 order or agreement of the parties.

36 B. IN A CIVIL CASE, a jury fee shall also be included in the
37 judgment and taxed as costs and shall be fixed by the court at the time
38 the judgment is given. The jury fee shall include the cost of
39 reimbursement for juror travel expenses. The jury fee shall be paid to
40 the clerk of the court for transmittal to the county treasurer who shall
41 dispose of it as other similar money is disposed of. An action to collect
42 jury fees shall be commenced:

43 1. Only if the judgment fixing the jury fees is recorded in the
44 office of the county recorder not later than thirty days after the
45 judgment is rendered.

46 2. At any time after the date of the recording of the judgment
47 fixing the jury fees and the judgment does not expire until it is paid in
48 full.

1 C. The court may at any time for good cause shown relieve a person
2 from payment of a jury fee **IN A CIVIL CASE** if the court believes that such
3 relief is proper.
4 **D. A JURY FEE MAY NOT BE IMPOSED IN A CRIMINAL CASE.**
5 Sec. 6. Section 13-4034, Arizona Revised Statutes, is amended to
6 read:
7 13-4034. Expense of record or transcript on appeal as county
8 charge
9 The expense of a certified copy of the record on appeal or of the
10 reporter's transcript, ~~or both, when appellant files an affidavit that he~~
11 ~~is without means or wholly unable to pay for such copies, and such~~
12 ~~affidavit is found true,~~ shall be a charge ~~upon~~ **ON** the county in which the
13 appellant was convicted.
14 Sec. 7. Section 22-371, Arizona Revised Statutes, is amended to
15 read:
16 22-371. Right of appeal; procedure for taking appeal;
17 transcript; appellate filing fee prohibited
18 A. The defendant in a criminal action may appeal to the superior
19 court from the final judgment of a justice or municipal court.
20 B. The procedure for appeals from a justice or municipal court to
21 the superior court shall be as provided by rules adopted by the supreme
22 court.
23 C. In a trial in a justice or municipal court, a transcript of the
24 proceedings may be ordered in the sole discretion of the superior court.
25 D. A defendant may not appeal from a judgment or sentence that is
26 entered pursuant to a plea agreement or from an admission to a probation
27 violation.
28 E. A victim, as defined in section 13-4401, may bring a special
29 action seeking to enforce any right or to challenge an order denying any
30 right guaranteed to victims.
31 **F. THE COURT MAY NOT IMPOSE AN APPELLATE FILING FEE ON A CRIMINAL**
32 **DEFENDANT.**
33 Enroll and engross to conform
34 Amend title to conform

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